

SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

Present:

Justice Muhammad Ali Mazhar
Justice Musarrat Hilali

Civil Petitions No.5674 and 5708 of 2025

Against the judgment dated 03.11.2025 passed by
Federal Service Tribunal, Islamabad in Appeals
No.13(P)CS and 14(P)CS/2024

Muhammad Afzal	(In CP 5674/25)
Usama Mehmood	(In CP 5708/25)
	Petitioners

Versus

Director GEO Information Center Survey of Pakistan, Peshawar and others	(In both cases) ...Respondents
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For the Petitioners:	Hafiz Noor Muhammad, ASC (In both cases)
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For the Respondents:	Rana Asad Ullah Khan, Addl. AGP
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Date of Hearing:	11.02.2026
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Judgment

Muhammad Ali Mazhar, J. These Civil Petitions for leave to appeal are brought to challenge the consolidated judgment dated 03.11.2025, rendered by learned Federal Service Tribunal, Islamabad ('FST') in four Service Appeals No.13(P)CS to 16(P)CS/2024. However, before us only two petitioners, Muhammad Afzal (Service Appeal No.13 (P) CS/24) and Usama Mehmood (Service Appeal No.14 (P) CS/24), have filed the Civil Petitions against the aforesaid impugned judgment.

2. The short and snappy facts of the case are that the petitioners were appointed as Naib Qasid in the respondent's department in April 2019. They were assigned field work and directed to move to Chilas vide letter dated 01.04.2022, where they remained

posted till May 2022. However, on the allegations of fake appointment letters, an inquiry order dated 16.05.2023 was served with the directions to submit replies without issuing any show cause notices and statement of allegations. The petitioners participated in the inquiry and also submitted relevant documents including the appointment letters but their services were terminated vide order dated 31.08.2023 with retrospective effect from 15.04.2019. The petitioners filed their departmental appeals which were not responded to within the statutory period, hence, they filed service appeals before FST but their appeals were dismissed by means of impugned judgment.

3. The learned counsel for the petitioners argued that the major penalty was imposed without considering the relevant documents by the Inquiry Committee. It was further averred that neither any regular inquiry was conducted, nor the petitioners were afforded opportunity of personal hearing. Even statement of allegations nor show cause notice was served. He further argued that the learned tribunal nonsuited the petitioners on the ground that they were local persons and not civil servants.

4. The learned Additional Attorney General for Pakistan, present in Court in some other case, waives notice and though he argued that the petitioners were appointed on the strength of fake appointment letters and terminated from service after proper inquiry and observing all the legal and codal formalities but he also contended while dismissing appeals on the question of maintainability, the FST should have confined to such question only without touching or rendering any findings on merits of the case.

5. Heard the arguments. In fact, paragraph 9 of the impugned judgment is quite relevant whereby the learned FST dismissed the service appeals of the petitioners which is reproduced as under:-

“9. In the light of the foregoing, it is evident that the appellant, being a locally hired, does not fall within the definition of a ‘civil servant’ as contemplated under the applicable law. Consequently, this Tribunal lacks jurisdiction to entertain the present appeal as well as the connected appeals being Nos.14 to 16 (P)CS/2024, is hereby dismissed as not maintainable. There shall be no order as to costs.”

6. The reasons of dismissing appeals manifested from the aforesaid paragraph are that the petitioners were locally hired and do not fall within the definition of a civil servant which means that the petitioners were nonsuited on the question of maintainability but the impugned judgment demonstrates that the learned FST, despite conceiving that appeals were not maintainable, also overwhelmingly touched upon the merits of the case and held that petitioners/appellants were recruited on the basis of forged appointment letters in violation of the recruitment rules of Survey of Pakistan which govern recruitment, pay, age, physical fitness, promotion, and other terms and conditions of service; a candidate may be appointed as a regular Naib Qasid only after completing three consecutive field seasons and securing three satisfactory field reports; the petitioners/appellants were not regular employees but having status of “local hired person”; under the rules, hiring from locality would not qualify for inclusion in the departmental strength and finally, the petitioners/appellants were declared ghost employees.

7. We have observed that in the greater part of the judgment, the learned FST has attended the entire controversy on merits regarding the status of the petitioners’ appointment letters, nature of their job and their ineligibility but in the end of the impugned judgment, both the appeals of the petitioners were dismissed due to lack of jurisdiction mainly on the plea that the petitioners were hired locally and they do not fall within the ambit of definition of the ‘civil servant’. We have often seen that while dismissing the appeals on the question of limitation or

maintainability or jurisdiction, the learned service Tribunals, rather than sticking to the question of jurisdiction and maintainability, used to touch the merits of the case as well. It is well settled exposition that if the Court or the Tribunal lack jurisdiction, then instead of fatally converging the merits of the case to avoid any prejudice on merits, the Court or Tribunal generally confines its decision/order to the question of maintainability and if the Court or Tribunal lacks jurisdiction then the best suitable course enunciated under CPC is to return the plaint or memo of appeals to present it in the appropriate forum for redressal. In our view, even, the status of appellants as civil servants or not was not properly adverted to by the learned FST except an observation that they were locally hired persons but failed to expound the relevancy of phrase "local person", moreover, as to why a local person cannot be appointed? Or why a local person cannot be a civil servant? On the contrary, according to the plea of the petitioners they were appointed without any violation of recruitment rules or recruitment policy and their appointment letters were not fake.

8. The decision "on the merits" means a court has issued a judgment on substantial issues involved after considering the oral and documentary evidence as well as the arguments rather than on technical or procedural lapses, errors or deficiencies. Indeed it resolves the fundamental dispute between the parties as binding decision which cannot be relitigated. A ruling on merits is otherwise binding under the doctrine of res judicata as claim preclusion but decisions which do not rest on the merits are not hit by doctrine of res judicata.

9. In legal proceedings, no doubt, the issue of maintainability of law suit including the question of jurisdiction either pecuniary, territorial or barred under any special or general law plays a crucial role and the Courts and Tribunals are obligated to examine the maintainability issue before delving into the merits

of the case. In legal parlance, a decision on the merits is in contrast to a decision on maintainability or jurisdiction which the Court/Tribunal ought to decide in the first segment as gatekeeping decision and threshold edict without touching the merits whether it has the jurisdiction to hear the case or not? The notion of maintainability and jurisdiction is a ground rule to watch out and ensure that only legitimate lis are heard by the Courts rather than wasting its precious time on vexatious or frivolous litigation. Twigg the reasons of upsetting the maintainability of lawsuit can help the litigants and lawyers to navigate the judicial system for availing effective remedy within the proper jurisdiction and at the same time avoiding unnecessary dismissal or rejection of the case.

10. All the Service Tribunals exercising jurisdiction under the Federal and Provincial Service Tribunal laws function as fact-finding forums of exclusive jurisdiction and possess the same powers as a civil court under the Civil Procedure Code 1908 (CPC) including the powers to execute and implement its judgments and orders. As a final court of fact, the Tribunal can also appraise evidence and examine witnesses similar to the Civil Courts.

11. In the scenario of having no jurisdiction, the best suited remedy and solution is provided under Order 7 Rule 10 CPC which puts the accent on the principle that if a court lacks jurisdiction, it should not dismiss or reject a case but return the plaint/case for its presentation before the Court conferred with the jurisdiction to deal and decide. If a Court or Tribunal reached the conclusion that it lacks the jurisdiction, then the finest legal option is to return the case. Any adjudication on the merits by a court or tribunal without jurisdiction is "coram non iudice" and therefore void. What's more is that the jurisdiction is the heartbeat without which any action amounts to stillbirth. The question of jurisdiction is the portal through which the

plaintiff/appellant/petitioner knocks at the door of Courts and if he enters in the wrong one, the court must redirect him rather than closing the door on their rights. Returning a plaint under Order 7 Rule 10 CPC preserves the party's right to seek a decision on the merits in the proper forum rather than ending their legal journey prematurely. Touching upon the merits without jurisdiction may prejudice right to a fair trial and due process under Article 10A of the Constitution and result in a failure of justice.

12. As a result of above discussion, these petitions are converted into appeals and allowed. As a consequence thereof, the impugned judgment passed by the learned Tribunal is set aside and the matter is remanded to the learned FST to first decide the question of jurisdiction and maintainability vis-à-vis the status of petitioners whether they are civil servants or not? And if they were locally hired as observed in the impugned judgment, was there any embargo and whether they can't be appointed as civil servants?

Judge

Judge

ISLAMABAD

11th February, 2026

Mudassar

Approved for reporting.